

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

CRIMINAL PETITION NO.2073 OF 2025

(Against the judgment dated 27.10.2025, passed by
the Lahore High Court, Lahore in Criminal Appeal
No.72894-J of 2023)

Wajahat Bibi

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s):	Mr. Shanzeb Khan, ASC a/w Syed Rifaqat Hussain Shah, AOR.
For the State:	Mr. Zafar Iqbal Chohan Special Prosecutor for ANF
Amicus Curiae :	Mr. Tariq Siddique, Addl. PG a/w Sarmad Munir, AHC.
Date of hearing:	09.04.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution's case as per First Information Report (FIR) No.31/2022 dated 09.11.2022, under sections 9(1)3(c) and 9(1)5(c) of the Control of Narcotic Substances Act, 1997 ('Act of 1997'), registered at Police Station ANF, Sialkot, is that on 09.11.2022, Adnan Iqbal S.I. (PW.4) along with other ANF officials including lady constable Mumtaz Bibi near Cheema Hospital Wazirabad intercepted Mst. Wajahat Bibi, the petitioner, and recovered two packets of charas, each weighing 01 Kilograms, total 02 Kilograms and 01 packet containing opium weighing 01 Kilograms from a polythene bag in her hand. He separated 10 grams

from each packet of charas and opium as samples for chemical analysis by the FSL and sealed the same in parcels. He also sealed the remaining quantity into separate parcels and thereafter took the same through recovery memo Exh.PC. From personal search of the petitioner he recovered Rs.210/-, a Q-Mobile phone having SIM, copy of her CNIC and lady wallet vide recovery memo Exh.PD. He drafted complaint Exh.PA on the basis of which FIR Exh.PA/2 (ibid) was registered against the petitioner.

2. After facing regular trial, the learned Judge Special Court CNS, Sialkot ('Trial Court'), vide judgment dated 05.09.2023, convicted the petitioner under sections 9(1)3(c) and 9(1)5(c) of the Act of 1997 and sentenced her to undergo rigorous imprisonment for nine years under each offence and to pay a fine of Rs.80,000/- and Rs.1,00,000/-, respectively and in default thereof to further undergo two months and three months simple imprisonment, respectively. Both the sentences were directed to run concurrently and benefit of Section 382-B Cr.P.C. was extended to the petitioner.

3. The Lahore High Court, Lahore ('the High Court'), dismissing the appeal of the petitioner-convict, maintained her conviction and sentences vide judgment dated 27.10.2025, hence, this petition for leave to appeal by the petitioner-convict.

4. Having heard learned counsel for the parties and having examined the material available on record, it has been observed that there are material contradictions in the testimonies of Constable Muhammad Imran (PW-1), Adnan Iqbal, S.I. (PW-4), the Seizing Officer, and Lady Constable Mumtaz Bibi (PW-5), who is a marginal witness to recovery memo Exh.PC. The above-named witnesses claim to be eyewitnesses of the occurrence. PW Constable Muhammad Imran, during cross-examination, deposed that after the alleged recovery of narcotics, the Seizing Officer conducted some proceedings at the corner of the road in a standing position and some while sitting on a chair procured by them from a nearby shop. In contrast, PW Adnan Iqbal, S.I., stated during cross-examination that all proceedings were conducted by him at the spot while sitting

on a folding chair and table which were available with them in the official vehicle. He further deposed that he did not open the entire packets of opium and that that he requested three or four private persons to join the proceedings, but they declined; that he could not disclose their names as they left without identifying themselves. Lady Constable Mumtaz Bibi (PW-5), however, while partially supporting the Seizing Officer regarding the use of a folding chair and table, introduced further inconsistencies. She stated that the recovered narcotics were weighed on an electric scale placed on the bonnet of the official vehicle, an aspect not mentioned at all by the Seizing Officer in his statement. Moreover, she contradicted the Seizing Officer by asserting that the entire packets of opium and charas were opened, and further stated that no private persons were asked by the Seizing Officer to join the proceedings at the place of occurrence. The aforesaid contradictions are not minor discrepancies but are material in nature, striking at the very root of the prosecution case. Such inconsistencies render the alleged recovery and the proceedings allegedly conducted at the spot highly doubtful and, thus, unsafe to rely upon without independent corroboration.

5. Yet another significant aspect of the case. The Seizing Officer, during cross-examination, candidly admitted that on the fateful day he had recorded his departure in the Roznamcha of the Police Station; however, the said daily diary entry has not been brought by him on record. He further deposed that the departure entry was incorporated in the relevant register of the Police Station through the Moharrir, but conceded that the name of the accused was not mentioned therein. According to the prosecution, on the fateful day, upon receipt of prior information regarding trafficking of narcotics by the petitioner, Mst. Wajahat Bibi, and her expected arrival near Cheema Hospital, Wazirabad Road, Daska, the Seizing Officer, along with other officials of ANF, constituted a raiding party, proceeded to the spot, and effected her arrest. If such were the true factual position, it was incumbent upon the Seizing Officer to reflect in the daily diary not only the factum of departure but also the purpose

thereof, including the name of the petitioner, particularly when her identity had allegedly been disclosed to him through prior information. The non-production of the daily diary, which constitutes the primary and best evidence to establish the departure of the seizing Officer from the Police Station, assumes critical importance. Despite its evidentiary value, the same has been withheld by the prosecution without any plausible justification. It is a mandatory requirement, as envisaged under Rules 22.48 and 22.49 of the Police Rules, 1934, that whenever a police official leaves the Police Station, the factum of such departure along with its purpose must be duly recorded in the Roznamcha. The failure of the prosecution to produce the relevant daily diary, therefore, warrants drawing of an adverse inference that the raiding party had not, in fact, proceeded to the place of occurrence in the manner alleged, and that the entire proceedings might have been conducted within the precincts of the Police Station. Fairness, transparency, and adherence to due process are the hallmarks of a criminal trial, and the prosecution is under a legal obligation to place before the Court all such material documents as would substantiate its case. It is a settled principle of law, encapsulated in the maxim *communis observantia non est recedendum*, that where the law prescribes a particular mode for doing an act, the same must be performed in that manner alone, and any deviation therefrom renders the prosecution case doubtful. Reliance in this regard may be placed upon the case titled *Irshad Khan v. The State* (2026 SCMR 87), wherein this court has reiterated the mandatory nature of compliance with procedural safeguards, and the consequences flowing from non-observance thereof.

6. The prosecution has further failed to establish the safe chain of custody and transmission of the representative samples of the alleged charas and opium from the Police Station to the Laboratory, which is sine qua non for sustaining a conviction in cases of recovery of narcotics. The Seizing Officer deposed that he had handed over the samples along with the case property to Maqbool Ahmad Moharrir/Head Constable (PW-2). The said witness, in turn, stated

that on 11.11.2022 at about 06:00 a.m., he entrusted the sealed parcels containing samples to Constable Muhammad Ashfaq (PW-3), along with the road certificate, docket (English), Form-I, and copy of the FIR for its onward transmission to NIH, Islamabad. He further deposed that the said constable returned on the same day at about 06:00 p.m. after allegedly depositing the samples in the Laboratory. However, the testimony of PW-3, Constable Muhammad Ashfaq, renders the prosecution case highly doubtful. During cross-examination, when confronted with the road certificate, he admitted that the same did not bear the signatures of the Seizing Officer/Investigating Officer. He further conceded that his own signatures were also not present thereon. Although he attempted to explain that he had appended his signatures upon reaching NIH, Islamabad, yet, when again confronted with the said certificate, he admitted that the road certificate does not bear his signatures at all. The Seizing Officer admitted that he had not appended copies of Register No. 19, wherein complete particulars of the case property are required to be entered, nor the relevant extracts of the daily diary register in this regard, with the case file. These omissions assume critical significance, as such documents constitute the best evidence to establish the safe custody and unbroken chain of transmission of the case property. In the absence of cogent and confidence-inspiring evidence establishing that the samples remained in safe custody and were transmitted to the Laboratory without any possibility of tampering, the prosecution has failed to discharge its burden. It is by now well-settled that any break or missing link in the chain of custody is fatal to the prosecution case. Consequently, the failure to prove the safe transmission of the samples to the Laboratory for chemical examination entitles the petitioner to the benefit of doubt and, thus, acquittal in accordance with the settled principles of law laid down by this Court in various judgments.

7. The cumulative effect of the aforementioned contradictions, inconsistencies, and material omissions is that the prosecution has failed to prove its case against the petitioner beyond the shadow of reasonable doubt. It is a settled principle of criminal jurisprudence

that even a single circumstance creating doubt in a prudent mind regarding the guilt of an accused entitles her to the benefit of such doubt as a matter of right and not of grace. The learned courts below, while overlooking the material discrepancies and inherent infirmities in the prosecution evidence, fell into serious error of law in recording the conviction of the petitioner, which thus cannot be sustained.

8. Consequently, this petition is converted into an appeal and is hereby allowed. The conviction and sentence awarded to the appellant by the courts below are set aside, and she is acquitted of the charge in the instant case. She shall be released forthwith, if not required to be detained in any other case.

Judge

Judge

Judge

Announced in open Court at Islamabad on _____

Judge

Not Approved for Reporting
M.Siraj Afridi PS